

REQUEST FOR JUDGMENT OR FOR DISMISSAL

IN THE PROVINCIAL COURT OF BRITISH COLUMBIA (SMALL CLAIMS COURT)

REGISTRY FILE NUMBER
REGISTRY LOCATION

Fill in the names of the parties, copying them from the Notice of Claim and any Third Party Notice.

In the case between

CLAIMANT(S)

NAME

and

DEFENDANT(S)

NAME

and

THIRD PARTY(IES)

NAME

APPLICANT(S)

NAME

Fill in the name of each person requesting judgment or dismissal.

☐ Form 38, Address for Service included for filing ☐ Form 38, Address for Service previously filed

Indicate what you are asking for and your reasons.

Because

- ☐ the claimant(s)
- ☐ a defendant(s): _____

did not

- ☐ attend the mediation session
- ☐ sign the fee declaration and a Verification of Default (Form 31) has been filed

the applicant asks for

- ☐ an order dismissing the claim
- ☐ a default order because the claim is for debt
- ☐ a date for a hearing before a judge because the claim is not for a debt

The Court orders that

This will be completed by the Court.

date

by the registrar